

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.



CHAPTER xxxvi.

An Act to alter the constitution of the Norwich Union Life Insurance Society by substituting a memorandum and articles of association for its existing laws and regulations and to repeal the Norwich Union Life Insurance Society Act 1891 and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS by deed of settlement dated the first day of July one thousand eight hundred and eight the Norwich Union Life Insurance Society (in this Act referred to as "the Society") was established (under the name of the Norwich Union Society) for effecting insurances on lives and survivorships and for granting annuities and by an Act passed in the year one thousand eight hundred and thirteen (in this Act referred to as "the Act of 1813") the Society was empowered to sue in the name of its secretary and to be sued in the names of its directors treasurer or secretary :

And whereas certain byelaws defining the business of the Society and regulating the investment of its funds and other matters were passed by general meetings of the Society in the years one thousand eight hundred and fifty-eight and one thousand eight hundred and sixty-four :

And whereas doubts being entertained as to the validity of those byelaws they were confirmed by the Norwich Union Life Insurance Society Act 1868 (in this Act referred to as "the Act of 1868") and various provisions were made by the same Act with respect to the business and government of the Society :

And whereas shortly after the passing of the Act of 1868 and under the power conferred by that Act the Society formed a new series of insurances :

A.D. 1905.

And whereas by the Amicable and Norwich Union Societies Act 1866 (in this Act referred to as "the Act of 1866") and in pursuance of a memorandum of agreement a copy of which was scheduled thereto the liabilities of the Amicable Society for a perpetual assurance office (in this Act referred to as "the Amicable Society") were transferred to the Society and the assets of the Amicable Society were vested in trustees by way of security for claims on Amicable policies and after satisfying the terms and conditions of the said memorandum of agreement in trust for the Society and it was provided that for the further protection of certain non-assenting policy-holders of the Amicable Society the trustees should retain the sum of one hundred and fifty thousand pounds for securing the payment of claims on the Amicable policies of such policy-holders:

And whereas at the date of the passing of the Act of 1891 next hereinafter recited the whole number of Amicable policies in force was one hundred and sixty-six and the amount assured thereby was one hundred and sixty-two thousand three hundred and seventeen pounds and the claims of only three of the said non-assenting policy-holders amounting together to one thousand pounds remained unsatisfied:

And whereas by the Norwich Union Life Insurance Society Act 1891 (in this Act referred to as "the Act of 1891") it was provided that it should be lawful for the Society by special resolution as therein defined to make new laws for better defining the existing objects of the Society and new regulations for the government of the Society and the management of its affairs which new laws and regulations were not to be inconsistent with the provisions of that Act and that the regulations of the Society should be subject to repeal alteration or addition in such manner as might be provided by the new laws to be made as aforesaid and (by section 3) that notwithstanding any existing provision or regulation to the contrary (A) the Society should have power to issue policies of assurance for capital sums to such an amount as the directors might think proper Provided always that no greater sum than ten thousand pounds exclusive of bonus additions should at any one time stand upon the Society's own risk on any one life and in every case in which the directors should issue a policy by which the aggregate sum assured upon one life should be more than ten thousand pounds exclusive as aforesaid they should at the time of the issuing such policy take out one or more guarantee or

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

re-assurance policy or policies to the amount of the excess from such other life assurance company or association or companies or associations as they might think fit and the Society should maintain every such guarantee or re-assurance policy so long as was necessary to limit its own risk to ten thousand pounds on such one life and (B) no annuity should be charged upon the funds of the Society upon any contingency whatsoever of greater amount than five hundred pounds per annum and (by section 4) that as from the passing of such special resolution the then existing deed of settlement and all byelaws and resolutions of the Society and the Act of 1813 and the Act of 1868 should be repealed without prejudice to anything done or suffered thereunder respectively and (by section 16) that all securities moneys and property vested in or standing in the names of the trustees for the Amicable Society should be transferred by them to three of the trustees of the Society who were to be enrolled and registered under the powers of the Act of 1891 as "trustees of the Amicable fund" and that the Amicable fund should be held upon trust for the benefit of such remaining policy-holders as aforesaid and subject thereto in trust for the Society and (by section 17) that nothing in the Act of 1891 should operate to incorporate the Society or its trustees : A.D. 1905.

And whereas a special resolution as defined as aforesaid was duly passed at special general meetings of the Society held respectively on the twenty-fourth day of June one thousand eight hundred and ninety-one and on the thirteenth day of July one thousand eight hundred and ninety-one adopting new laws and regulations and by the laws so adopted it was provided as follows :—

"1 The objects of the Society are to grant or issue insurances as well on non-participating scales as on participating scales or by way of mutual assurance against all such risks or contingencies (whether of issue or otherwise and whether dependent upon a life or lives or not) as are now or may hereafter be usually accepted or provided against by life insurance societies or companies and to purchase and sell annuities and generally to transact all other business now or hereafter usually transacted by life insurance societies or companies.

A.D. 1905.

“ 2—(1) The directors may from time to time by resolution of at least two-thirds of their number and with the sanction of a special resolution of the Society passed in accordance with the regulations of the Society for the time being in force repeal alter or add to all or any of the regulations of the Society or may make new regulations to the exclusion of or in addition to the regulations for the time being in force :

(2) Any regulations or alterations so made and sanctioned shall be of the same validity as if originally contained in the following regulations and shall be subject to be repealed or altered in like manner ” :

And whereas the Society was on the tenth day of May one thousand eight hundred and ninety-three registered under Part VII of the Companies Act 1862 as an unlimited company :

And whereas by special resolution of the Society duly passed and confirmed at special general meetings thereof held respectively on the twenty-fourth day of May one thousand eight hundred and ninety-three and the eighth day of June one thousand eight hundred and ninety-three it was resolved that the objects of the Society should be altered by adding at the end of clause 1 of the new laws and regulations aforesaid the words following (that is to say) :--

“ The Society may also from time to time and at any time take over on such terms and conditions as may be arranged the whole or any part of the business assets undertaking and liabilities of any other company society or institution carrying on any assurance business which the Society is authorised to carry on and the terms and conditions aforesaid may include provision for payment by this Society of all or part of the expenses of and incident to the winding up and dissolution of the transferring company society or institution and may provide for the concession to the policy-holders annuitants creditors directors employés and members of the transferring company society or institution of any special rights privileges and advantages and may include any other provisions which the directors of this Society may think expedient and the agreement con-

taining such terms and conditions shall when sanctioned by the High Court of Justice (when requisite) be effective for all purposes":

A.D. 1905.
—

And whereas the said alteration of the Society's objects was duly confirmed by order of the High Court of Justice made the twentieth day of July one thousand eight hundred and ninety-three:

And whereas the Society has from time to time by special resolutions duly passed made divers alterations in the regulations aforesaid:

And whereas the Society under the powers vested in it by its laws and regulations aforesaid has carried on and is carrying on an extensive business more especially in the way of (A) life insurance (B) the creating and selling of annuities and (C) the contracting with leaseholders borrowers lenders annuitants and others for the establishment accumulation provision or payment of sinking funds redemption funds renewal funds depreciation funds endowment funds and other special funds or sums hereinafter called "endowment and other special fund business":

And whereas the Society in carrying on its annuity business since the passing of the Act of 1891 has occasionally created and sold a life annuity exceeding in amount five hundred pounds per annum but in every such case the Society has forthwith purchased or acquired from some other insurance company an annuity on the same life of an amount sufficient to indemnify the Society against its liability in excess of five hundred pounds per annum:

And whereas in one case the Society purchased certain landed property of considerable value which was subject to a rentcharge of two thousand pounds per annum and subsequently the Society resold the said property in lots subject to the said rentcharge and covenanted with the various purchasers to indemnify them their heirs executors and administrators respectively against the payment of the said rentcharge or any part thereof:

And whereas the said annuities and covenants to indemnify were not by deed or otherwise expressed to be charged on any of the funds of the Society save and except in so far as the

A.D. 1905. — deeds or documents creating such annuities may provide that the Society's funds and property should be liable for the payment thereof :

And whereas doubts have arisen whether the said annuities and covenants to indemnify were valid regard being had to section 3 of the Act of 1891 and it is desirable to remove such doubts and to confirm such annuities and covenants :

And whereas from time to time the Society in the course of its business acquires and has from time to time acquired by way of mortgage or security divers policies annuities and other obligations or debts granted or incurred by the Society and doubts have arisen whether such acquisition does not effect a merger or satisfaction of the premises so acquired and it is desired to make special provision to remove such doubts and prevent such merger :

And whereas the Society in carrying on business abroad has had and may have occasion to make special deposits or investments of funds of the Society to comply with the conditions imposed by the local law and in accordance therewith to give to the persons with whom contracts abroad are effected special rights as against the funds so deposited or invested and it is desirable to make special provision in regard thereto :

And whereas the endowment and other special fund business is of a class which is usually transacted by life insurance societies or companies and adds largely to the Society's profits and those cases where the Society's obligations in regard thereto are not dependent or contingent on the death of any person involve little or no risk to the Society :

And whereas doubts have arisen as to the application of the premiums arising from the endowment and other special fund business and as to the proper funds out of which sums payable in respect thereof should be paid and it is desirable to remove such doubts :

And whereas the whole number of the Amicable policies now in force is thirty-three and the amount assured thereby is fifteen thousand three hundred and forty pounds and the claim of only one of the said three non-assenting policy-holders amounting to two hundred pounds only exclusive of bonuses remains unsatisfied :

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

And whereas the continuance of the special trust aforesaid for the benefit of the holders of the Amicable policies is expensive inconvenient and unnecessary and it is expedient to put an end to such special trust and to provide for the security of such policy-holders as herein-after mentioned :

A.D. 1905.

And whereas it is desirable to alter the Society's constitution by substituting a memorandum and articles of association for its laws and regulations aforesaid and to repeal the Act of 1891 :

And whereas it is desirable to make provision for the vesting in the Society of property now vested in trustees for the Society :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the *Norwich Union Life Insurance Society Act 1905.* Short title.

2. Any deeds or other documents granting or securing the said annuities exceeding in amount five hundred pounds per annum and the said covenants to pay the said rentcharge of two thousand pounds per annum and to indemnify the purchasers of the land subject thereto against all claims in respect thereof shall be and the same are hereby confirmed. Confirmation of deeds documents &c.

3. If any policy annuity or other obligation or debt or right of action against the Society shall by virtue of the sections of this Act whereof the marginal notes respectively are "Transfer of stock &c. by trustees of Amicable fund to Society" and "Provision for vesting of property in Society after registration" or by reason of any deed or instrument hereafter to be made or already made become or have become vested in the Society by way of mortgage or security only the same shall not be or be deemed to have been released or extinguished or become or be deemed to have become incapable of being enforced but all persons having any interest in or right to enforce the same and the Society shall be entitled to all such interest and rights as they would be entitled to if the same had been vested in a trustee for the Society instead of in the Society. Policies obligations and rights of action &c. not to be released by transfer to Society.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 Edw. 7.]
Act, 1905.

A.D. 1905.

Premiums
to be paid
to and pay-
ments to be
made from
life assur-
ance fund.

4. All premiums and other sums payable to the Society in respect of endowment and other special fund business shall from time to time as and when received be carried to the life assurance fund of the Society and form part thereof and all payments to be made by the Society in respect of endowment and other special fund business shall be paid out of the life assurance fund of the Society and endowment and other special fund business shall be treated for all purposes as life assurance business.

As to
deposits
abroad.

5. Where in order to comply with the requirements of the laws of any colony or dependency of the United Kingdom or of any foreign country it becomes or has become necessary or expedient to make any special deposit or investment of any funds of the Society as a condition of the Society being permitted to carry on business there it shall be lawful and shall be deemed to have been lawful for the Society to make the same notwithstanding that thereby the persons entitled to policies and other contracts effected in such colony dependency or foreign country may obtain or may or shall have obtained a preferential right or security over or in relation to the funds so deposited or invested.

Memoran-
dum and
articles of
association
to be sub-
stituted for
laws &c.

6. On and after the commencement of this Act the memorandum and articles of association set forth in the schedule hereto shall subject to the provisions of the Companies Acts 1862 to 1900 including the powers as regards alteration contained in those Acts be the memorandum and articles of association of the Society in substitution for the existing laws and regulations of the Society made pursuant to the Act of 1891 or otherwise and shall be treated as having been registered accordingly and all the provisions of the Act of 1891 save so far as the same shall be re-enacted herein shall be and the same are by this Act repealed.

Transfer of
stock &c. by
trustees of
Amicable
fund to
Society.

7. Notwithstanding the repeal of the Act of 1891 and notwithstanding the provisions of the Act of 1866 the trustees of the Amicable fund referred to in section 16 of the Act of 1891 shall forthwith after the commencement of this Act transfer and make over to the Society or its nominees the whole of the stocks funds shares securities moneys and property vested in or standing in their names as trustees of the Amicable fund other than those vested by the section of this Act the marginal note whereof is "Provision for vesting of property in Society

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

after registration” and the premises so transferred and the residue of the assets of the Amicable fund shall be carried to the Society’s life assurance fund and as from the commencement of this Act the surviving Amicable policy-holders shall be considered to be policy-holders of the Society and shall be entitled to payment accordingly but so that such policy-holders shall be entitled to such bonus additions (if any) as they would have been entitled to if this Act had not been passed.

A.D. 1905.

8. The Society shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not delivered within three months from the passing of this Act the Society shall incur a penalty not exceeding two pounds for every day after the expiration of the said three months during which the default continues and any director or manager of the Society who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the Registrar by the Society on such copy being registered the like fee as is for the time being made payable under the Companies Act 1862 on registration of any document other than a memorandum of association and upon such registration and payment the Registrar shall on the request of the Society certify under his hand such registration and deliver such certificate or a duplicate thereof to the Society.

Copy of Act
to be regis-
tered.

9. On the registration by the Registrar of Joint Stock Companies of the copy of this Act delivered to him in accordance with the last preceding section of this Act all property real and personal including all interests and rights in to and out of property real and personal and including obligations and things in action (but other than copyhold or customary land or any property situate in any British colony or dependency or any such shares stocks annuities or property as are or is only transferable in books kept by a company or other body or in manner prescribed by or under Act of Parliament) which shall at the date of such registration be held by the said trustees of the Amicable fund or by any other person or persons upon trust for the Society or for the purposes of any special fund of the Society shall pass to and vest in the Society for all the estate and interest of such person or persons therein and in lieu of the stamp duties

Provision
for vesting
of property
in Society
after regis-
tration.

A.D. 1905. — which would have been payable upon the deeds or assurances which in case this Act had not been passed would have been required to pass such property to and vest the same in the Society there shall be paid a stamp duty of five pounds and such duty shall be impressed upon the copy of this Act to be delivered to the Registrar of Joint Stock Companies under the last preceding section of this Act.

Revival of
void poli-
cies.

10. If any life policy granted before or after the passing of this Act shall at any time become void it may be revived by the directors of the Society either for the whole amount or only for a reduced amount and either for the whole period thereof or for a limited period and in the case of any policy so revived any unpaid premium or premiums together with compound interest thereon at the rate of five pounds per centum per annum shall be a first charge upon the policy in priority to the claims of all other persons interested in the policy and may be deducted by the Society from the sum payable by them on the policy falling due.

Saving for
general
Acts.

11. Nothing in this Act shall be deemed to exempt the Society from the provisions of the Life Assurance Companies Acts 1870 to 1872 or from those of any general Act passed during the present or any future session of Parliament affecting life assurance companies formed previously to the passing thereof.

Costs of Act.

12. The costs charges and expenses preliminary to and of and incidental to the procuring obtaining and passing of this Act shall be paid by the Society.

The SCHEDULE referred to in the foregoing Act. A.D. 1905.

The Companies' Acts 1862 to 1900.

MEMORANDUM of ASSOCIATION of the NORWICH UNION LIFE
INSURANCE SOCIETY.

1. The name of the Society is "The Norwich Union Life Insurance Society."
2. The registered office of the Society will be situate in England.
3. The objects for which the Society is established are—
 - (1) To carry on the business of life assurance in all its branches and in particular to grant or effect assurances of all kinds for payment of money by way of a single payment or by several payments or by way of immediate or deferred annuities or otherwise upon the happening of all or any of the following events namely the death or marriage or birth or survivorship or failure of issue of or the attainment of a given age by any person or persons or the expiration of any fixed or ascertainable period or the occurrence of any contingency or event which would or might be taken to affect the interest whether in possession vested contingent prospective or otherwise of any person or persons in any property or the loss or recovery of contractual or testamentary capacity in any person or persons :
 - (2) To grant annuities of all kinds whether dependent on human life or otherwise and whether perpetual or terminable and whether immediate or deferred and whether contingent or otherwise :
 - (3) To contract with leaseholders borrowers lenders annuitants and others for the establishment accumulation provision and payment of sinking funds redemption funds depreciation funds renewal funds endowment funds and any other special funds and that either in consideration of a lump sum or of an annual premium or otherwise and generally on such terms and conditions as may be arranged :
 - (4) To purchase and deal in and lend on life reversionary and other interests in property of all kinds whether absolute or contingent or expectant and whether determinable or not and to acquire lend money on redeem cancel or extinguish by purchase surrender or otherwise any policy security grant or contract issued made or taken over or entered into by the Society :
 - (5) To undertake and execute trusts of all kinds in connection with any of the purposes of the Society and in particular as regards policies granted by the Society or the moneys payable thereunder :

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 Edw. 7.]
Act, 1905.

A.D. 1905.
—

- (6) To re-insure or counter-insure all or any risks and to undertake all kinds of re-insurance and counter-insurance connected with any of the businesses aforesaid :
- (7) Generally to carry on and transact all other business which the Society may think capable of being conveniently carried on in connection with any of these objects or ancillary or conducive thereto :
- (8) To give to any class or section of those who insure or have other dealings with the Society any right over or in relation to any fund or funds or a right to participate in the profits of the Society or in the profits of any particular branch or part of its business or any other special privileges advantages or benefits :
- (9) To pay satisfy or compromise any claims made against the Society in respect of any policies or contracts granted by or dealt in or entered into by the Society which claims it may deem expedient to pay satisfy or compromise notwithstanding that the same may not be valid in law :
- (10) To purchase or otherwise acquire and undertake upon any terms that may be deemed expedient all or any part of the business property and liabilities of any person or company carrying on any business which the Society is authorised to carry on or possessed of property suitable for the purposes of the Society :
- (11) To enter into any arrangement for sharing profits union of interest joint adventure reciprocal concessions or co-operation with any person or company carrying on or engaged in or about to carry on or engage in any business or transaction which the Society is authorised to carry on or engage in and to take or otherwise acquire and hold shares or stock in or securities of and to subsidise or otherwise assist any such person or company :
- (12) Generally to purchase take on lease or in exchange hire or otherwise acquire any real or personal property and any rights or privileges which the Society may think necessary or convenient with reference to any of these objects or capable of being profitably dealt with in connection with any of the Society's property business or rights for the time being :
- (13) To promote any company or companies for the purpose of acquiring all or any of the property rights and liabilities of the Society or for carrying on any business which the Society is authorised to carry on or for any other purpose that may seem conducive to any of the interests of the Society and to hold shares or any interest in any such company and to dispose of such shares and interests and to make and carry out arrangements for giving the Society the entire or partial

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

control or management or benefit of the business of any such company and to guarantee dividends on shares stock debentures mortgages bonds and policies of assurance of any such company :

A.D. 1905.
—

- (14) To develop and turn to account any land acquired by or in which the Society is interested and in particular by constructing altering pulling down reconstructing decorating furnishing fitting up maintaining and improving buildings and whether the same shall be intended for the occupation or part occupation of the Society or otherwise :
- (15) To invest the moneys of the Society in such manner as may from time to time be determined :
- (16) To lend or advance moneys and deposit securities and property to and with such persons or companies and on such terms as may seem expedient and to underwrite or guarantee the subscription of any stocks funds shares debentures mortgages or securities and to subscribe for the same conditionally or otherwise :
- (17) To raise or borrow or secure the payment of money in such manner and on such terms as may seem expedient and in particular by the creation or issue of any mortgages debentures debenture stock bonds or notes :
- (18) To draw accept endorse discount execute and issue bills of exchange promissory notes debentures debenture stock whether expressed to be payable to bearer or otherwise and other negotiable or transferable instruments or securities and in particular to issue to any person or company interested in any policy in respect of all or any of the premiums paid on any such policy any separate promissory note bill of exchange bond policy or contract providing for the payment to bearer or otherwise whether conditionally or unconditionally of any specified sum at the death of the person whose life is assured by such policy or in some other event :
- (19) To procure the Society to be registered or recognised in any country state or place abroad and to make any investments or deposits and to comply with any conditions necessary or expedient in order to enable the Society to carry on business in any country state or place abroad and to establish or guarantee local companies or branch offices constituted or regulated under or by local laws for the purpose of carrying on any business which the Society is authorised to carry on :
- (20) To sell improve manage develop exchange enfranchise lease mortgage dispose of turn to account or otherwise deal with all or any part of the property or rights of the Society :
- (21) To do all or any of the above things in any part of the world and either as principals agents trustees contractors or otherwise and either alone or in conjunction with others and either by or through agents sub-contractors trustees or otherwise :

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 Edw. 7.]
Act, 1905.

A.D. 1905.

(22) To do all such other things as the Society may think incidental or conducive to the attainment of the above objects.

The word "company" in this memorandum shall be deemed to include any partnership or other body of persons whether incorporated or not incorporated and whether domiciled in the United Kingdom or elsewhere.

The Companies' Acts 1862 to 1900.

ARTICLES OF ASSOCIATION OF THE NORWICH UNION
LIFE INSURANCE SOCIETY.

PRELIMINARY.

Interpreta-
tion.

1. The marginal notes hereto shall not affect the construction hereof And in these presents unless there be something in the subject or context inconsistent therewith—

"The Act of 1905" means the *Norwich Union Life Insurance Society Act 1905*;

"The Society" means the above-mentioned Society;

"The office" means the registered office for the time being of the Society;

"The register" means the register of members to be kept pursuant to section 25 of the *Companies Act 1862*;

"Member" means a person who is an original grantee from the Society of a subsisting policy of insurance whether such policy was granted before or after the coming into operation of these Articles and whether such grantee remains the beneficial owner of such policy or not;

"Existing" means existing at the time when these articles come into operation;

"Month" means calendar month;

"In writing" or "written" include printing lithography and other modes of representing or reproducing words in a visible form;

"The directors" means the directors for the time being of the Society whether named in Article 25 hereof or elected by the members or appointed under Article 27 hereof;

"The secretary" includes any other duly authorised officer acting as secretary;

"Special resolution" and "extraordinary resolution" have the meanings assigned thereto respectively by the *Companies Act 1862* sections 51 and 129;

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

Words importing the singular only include the plural number and A.D. 1905.
vice versa;

Words importing the masculine gender only include the feminine gender;

Words importing persons include corporations.

GENERAL MEETINGS.

2.—(1) A general meeting of the members shall be held once in every year at such time and place as may be prescribed by the Society in General Meeting or if no time or place is so prescribed at such time and place as may be determined by the directors This meeting shall be called the “annual general meeting.” When annual general meeting to be held.

(2) All other general meetings of the Society shall be called “special general meetings.” Distinction between annual general and special general meetings.

(3) All general meetings shall be held at the office or at some other convenient place in Norwich.

3. The directors may whenever they think fit convene a special general meeting and the directors shall on the request in writing signed by ten or more members whose policies granted by the Society and still subsisting amount in the aggregate to not less than 10000*l.* forthwith proceed to convene a special general meeting and the following provisions shall have effect:— When special general meeting to be called.

(1) The requisition must state the objects of the meeting and must be signed by the requisitionists and deposited at the office and may consist of several documents in like form each signed by one or more requisitionists:

(2) If the directors do not proceed to cause a meeting to be held within 21 days from the date of the requisition being so deposited the requisitionists or a majority of them in value may themselves convene the meeting but any meeting so convened shall not be held after three months from the date of such deposit:

(3) If at any such meeting a resolution requiring confirmation at another meeting is passed the directors shall forthwith convene a further special general meeting for the purpose of considering the resolution and if thought fit of confirming it as a special resolution and if the directors do not convene the meeting within seven days from the date of the passing of the first resolution the requisitionists or a majority of them in value may themselves convene the meeting:

(4) Any meeting convened under this clause by the requisitionists shall be convened in the same manner as nearly as possible as that in which meetings are to be convened by directors.

4. Seven clear days notice to the members specifying the place day and hour of meeting and in case of special business the general nature of such business shall be given either by advertisement or by notice sent by post or otherwise served as herein-after provided Whenever it is intended Notice of meeting.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905. — to pass a special resolution the two meetings may be convened by one and the same notice and it shall be no objection that the notice only convenes the second meeting contingently on the resolution being passed by the requisite majority at the first meeting.

As to omission to give notice.

5. The accidental omission to give any such notice to any of the members shall not invalidate any resolution passed at any such meeting.

PROCEEDINGS AT GENERAL MEETINGS.

Business of an annual general meeting.

6. The business of an annual general meeting shall be to receive and consider the revenue account and the balance sheet the reports of the directors and of the auditors to elect directors and other officers in the place of those retiring by rotation and to transact any other business which under these articles ought to be transacted at an annual general meeting All other business transacted at an annual general meeting and all business transacted at a special general meeting shall be deemed special.

Special business.

Quorum.

7. Twenty members personally present and not disqualified to vote shall be a quorum for a general meeting and no business shall be transacted at any general meeting unless the quorum requisite be present at the commencement of the business.

Chairman of general meeting.

8. The President of the Society shall be entitled to take the chair at every general meeting or if there be no President or if at any meeting he shall not be present within 15 minutes after the time appointed for holding such meeting the members personally present shall choose another director as chairman and if no director be present or if all the directors present decline to take the chair then the meeting shall choose one of the members to be chairman.

When if quorum not present meeting to be dissolved and when to be adjourned.

9. If within half-an-hour from the time appointed for the meeting a quorum is not present the meeting if convened upon such requisition as aforesaid shall be dissolved but in any other case it shall stand adjourned to the same day in the next week at the same time and place and if at such adjourned meeting a quorum is not present within 30 minutes from the time fixed for the holding of it such meeting shall be dissolved.

How questions to be decided at meetings. Casting vote.

10. Every question submitted to a meeting shall be decided in the first instance by a show of hands and in the case of an equality of votes the chairman shall both on a show of hands and at a poll have a casting vote in addition to the vote or votes to which he may be entitled as a member.

What is to be evidence of the passing of a resolution where poll not demanded.

11. At any general meeting unless a poll is demanded by the chairman or by at least five members personally present a declaration by the chairman that a resolution has been carried or carried by a particular majority or lost or not carried by a particular majority and an entry to that effect in the book of proceedings of the Society shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against such resolution.

12. If a poll is demanded as aforesaid it shall be taken in such manner and at such time and place as the chairman of the meeting directs and either at once or after an interval or adjournment or otherwise and the result of the poll shall be deemed to be the resolution of the meeting at which the poll was demanded.

A.D. 1905.
Poll. —

13. The chairman of a general meeting may with the consent of the meeting adjourn the same from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

Power to adjourn general meeting.

14. The demand of a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded.

Business may proceed notwithstanding demand of poll.

15. Any poll duly demanded on the election of a chairman of a meeting or on any question of adjournment shall be taken at the meeting without adjournment.

In what cases poll taken without adjournment.

VOTES OF MEMBERS.

16. On a show of hands every member present in person shall have one vote and at a poll every member present in person or by proxy shall be entitled to vote according to the following scale:—

Votes of members.

- (A) A grantee of a policy or policies for 100*l.* in the aggregate or upwards but less than 1,000*l.* shall have one vote:
- (B) A grantee of a policy or policies for 1,000*l.* in the aggregate or upwards but less than 2,000*l.* shall have two votes:
- (C) A grantee of a policy or policies for 2,000*l.* in the aggregate or upwards but less than 3,000*l.* shall have three votes:
- (D) A grantee of a policy or policies for 3,000*l.* in the aggregate or upwards but less than 4,000*l.* shall have four votes:
- (E) A grantee of a policy or policies for 4,000*l.* in the aggregate or upwards shall have five votes.

17. Where a policy has been granted to more persons than one the person or surviving person for the time being first named in the policy shall be treated by the Society as regards the right to be present at general meetings and the right to vote as if he were the sole grantee of the policy.

Case of joint holders of policies.

18. Notwithstanding anything herein contained a member shall not be entitled to vote or to take part in a demand for a poll at any meeting of the Society in respect of a policy which has been in force for less than one year.

Restriction on right to vote.

19. Votes may be given either personally or by proxy The instrument appointing a proxy shall be in writing under the hand of the appointor or his attorney or if such appointor is a corporation under its common seal No person shall be appointed a proxy who is not a member

Proxies permitted.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905. — of the Society save that a corporation being a member of the Society may appoint as its proxy any officer of such corporation whether a member of the Society or not.

Proxies to be deposited at office.

20. The instrument appointing a proxy and the power of attorney (if any) under which it is signed shall be deposited at the office not less than 48 hours before the time for holding the meeting or adjourned meeting (as the case may be) at which the person named in such instrument proposes to vote but no instrument appointing a proxy shall be valid after the expiration of 12 months from the date of its execution.

When vote by proxy valid though authority revoked.

21. A vote given in accordance with the terms of an instrument of proxy shall be valid notwithstanding the previous death of the principal or revocation of the proxy or transfer of the policy or policies in respect of which the vote is given unless an intimation in writing of the death revocation or transfer shall have been received at the office before the meeting.

Form of proxy.

22. Every instrument of proxy whether for a specified meeting or otherwise shall as nearly as circumstances will admit be in the form or to the effect following:—

“The Norwich Union Life Insurance Society.

“ I

“ of

“ in the county of

“ being a member of the Norwich Union Life Insurance Society

“ hereby appoint

“ of

“ (or failing him

“ of

“ (or failing him

“ of

“ as my proxy to vote for me and on my behalf at the (annual

“ or special as the case may be) general meeting of the Society

“ to be held on the day of and at any adjournment

“ thereof.

“ As witness my hand this day of .”

No member entitled to vote &c. while premium due to Society.

23. No member shall be entitled to be present or to vote on any question either personally or by proxy or as proxy for another member at any general meeting or upon a poll or be reckoned in a quorum whilst any premium shall be unpaid for 30 days next after it has become due and payable to the Society by such member in respect of any policy granted by the Society.

DIRECTORS.

Number of directors.

24. Until otherwise determined by a general meeting the number of the directors shall not be less than seven nor more than eleven.

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

25. The persons herein-after named are the existing directors (that is to say) :— A.D. 1905.

Thomas Calthorpe Blofeld (President).

Present
directors.

George Forrester }
Sir Peter Eade } (Vice Presidents).

Charles Louis Buxton.

George Moore Chamberlin.

Frank Astley Cubitt.

William Henry Hackblock.

Haynes Sparrow Robinson.

James John Winter.

26. There shall be a President and two Vice Presidents of the directors and the following provisions shall have effect :— President and two Vice Presidents.

(1) The existing President and Vice Presidents shall respectively continue to hold such offices until the first meeting of the directors held after the annual general meeting next following the commencement of the Act of 1905 :

(2) The directors shall at such first meeting and also at their first meeting held after the annual general meeting in every subsequent year appoint one of their number to be President and two others of their number to be Vice Presidents subject to the provisions of these Articles :

(3) The retiring President and Vice Presidents shall respectively be eligible for re-appointment :

(4) The directors may at any time remove the President or any Vice President or Vice Presidents and appoint another director or other directors in his or their place or places respectively :

(5) Each such President and Vice President shall be President and Vice President respectively of the Society for the time being.

27. The directors shall have power from time to time and at any time to appoint any qualified person as a director either to fill a casual vacancy arising under Article 31 hereof or as an addition to the directorate but so that the total number of directors shall not at any time exceed the maximum number fixed as above and so that no appointment under this Article shall have effect unless a majority at least of the directors shall concur therein Any director so appointed shall hold office only until the next annual general meeting of the Society and shall then be eligible for re-election. Power for directors to fill casual vacancies and to appoint additional directors.

28. A person is not eligible as a director—

Qualification
of directors.

(1) Unless he is a grantee from the Society of a policy or policies of insurance for 1,000*l.* or upwards on his own life for the whole duration thereof ; or

(2) Unless he is a grantee from the Society of a policy or policies of insurance for 2,000*l.* or upwards partly on his own life

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905.

and partly on the life or lives of another or others for in each case the whole duration of the life ; or

- (3) If he is a director of or holds any office in any other life insurance company.

Remuneration
of directors.

29. The remuneration of the directors in and for every year for attendance at board and committee meetings shall until otherwise determined by a general meeting be the sum of 3,000 guineas to be divided amongst the directors in such manner and subject to such terms regulations and conditions as the directors may from time to time determine and if in the opinion of the directors it is at any time desirable that any of their number should make any special journeys or perform any special services on behalf of the Society or its business such director or directors shall be paid such additional remuneration and expenses for such journeys and services as the directors may from time to time determine.

Directors may act
notwithstanding
vacancy.

30. The continuing directors may act notwithstanding any vacancy in their body.

When office of
director to be
vacated.

31. The office of director shall ipso facto be vacated —

- (A) If he without the sanction of any general meeting accept or hold any other office under the Society except trustee or receiver under or in respect of any mortgage or charge or other property of the Society or in which the Society is interested :
- (B) If he without the sanction of the Society in general meeting accept any office or place of profit in any other life insurance company established or carrying on business in any part of the world :
- (C) If he become bankrupt or suspend payment or compound with his creditors :
- (D) If he be found lunatic or become of unsound mind :
- (E) If he cease to hold the necessary qualification :
- (F) If he absent himself from the meetings of the directors during more than 13 successive weeks (except in case of illness or other unavoidable circumstances certified to the satisfaction of the directors) without special leave of absence from the directors or if he absent himself (whatever be the cause) from all meetings of the directors during more than 26 weeks in the whole in any year ending on the 30th day of June :
- (G) If by notice in writing to the Society he resign his office.

Directors may
contract with
the Society.

32. No director shall be disqualified by his office from contracting with the Society either as vendor purchaser or otherwise nor shall any such contract or any contract or arrangement entered into by or on behalf of the Society in which any director shall be in any way interested be avoided nor shall any director so contracting or being so interested be liable to account to the Society for any profit realised by any such contract or

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

arrangement by reason only of such director holding that office or of the fiduciary relations thereby established but it is declared that the nature of his interest must be disclosed by him at the meeting of the directors at which the contract or arrangement is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest and that no director shall as a director vote in respect of any contract or arrangement in which he is so interested as aforesaid and if he do vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Society to give to the directors or any of them any security by way of indemnity and it may at any time or times be suspended or relaxed to any extent by a general meeting. A general notice that a director is a member of any specified firm or company and is to be regarded as interested in all transactions with that firm or company shall be a sufficient disclosure under this clause as regards such director and the said transactions and after such general notice it shall not be necessary for such director to give a special notice of any particular transaction with that firm or company.

A.D. 1905.
—

ROTATION OF DIRECTORS.

33. At the annual general meeting to be held in each year three of the directors shall retire from office. A retiring director shall retain office until the meeting at which his successor is elected or at which it may be decided not to fill up the vacancy.

Rotation of retirement of directors.

34. The three directors so to retire shall be those who have been longest in office. As between two or more who have been in office an equal length of time the director or directors to retire shall in default of agreement between them be determined by lot. The length of time a director has been in office shall be computed from his last election or appointment where he has previously vacated office. A retiring director shall be eligible for re-election.

Which directors to retire.

35. The Society at any general meeting at which any directors retire in manner aforesaid shall fill up the vacated offices by electing a like number of persons to be directors and without notice in that behalf may fill up any other vacancies.

Meeting to fill up vacancies.

36. If at any general meeting at which an election of directors ought to take place the place of any retiring director is not filled up he shall continue in office until the annual general meeting in the next year and so on from year to year until his place is filled up unless it shall be determined at such meeting to reduce the number of directors.

Retiring directors to remain in office till successors appointed.

37. The Society in general meeting may from time to time increase or reduce the number of directors and may alter their qualification and may also determine in what rotation such increased or reduced number are to go out of office.

Power for general meeting to increase or reduce number of directors.

38. The Society may by extraordinary resolution remove any director before the expiration of his period of office and may by ordinary resolution

Power to remove director.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5. EDW. 7.]
Act, 1905.

A.D. 1905. — appoint another qualified person in his stead The person so appointed shall hold office during such time only as the director in whose place he is appointed would have held the same if he had not been removed.

When candidate for office of director must give notice.

39. No person not being a retiring director shall unless recommended by the directors for election be eligible for election to the office of director at any general meeting unless he or some other member intending to propose him has at least fourteen clear days before the meeting left at the office a notice in writing under his hand signifying his candidature for the office or the intention of such member to propose him.

PROCEEDINGS OF DIRECTORS.

Ordinary boards.

40.—(1) The directors shall meet at least once in every week in the city of Norwich on a stated day or days.

(2) Such meetings shall be called "ordinary boards" all other meetings of the directors except meetings of directors' committees shall be called "special boards."

(3) To constitute an ordinary board there must be at least five directors present.

Special boards.

41.—(1) The president or in his absence or incapacity to act any vice-president or any three directors may by notice to the secretary require a special board to be called and thereupon the secretary shall call a special board by circular letter bearing his name and stating the day and hour of the board meeting and the purpose for which it is called.

(2) To constitute a special board there must be at least five directors present.

Meetings of directors. No notice to director abroad.

42. Subject as aforesaid the directors may meet together for the dispatch of business adjourn and otherwise regulate their meetings as they think fit A director whilst out of the United Kingdom shall not be entitled to notice of any such meeting.

Decision of questions.

43. Questions arising at any meeting shall be decided by a majority of votes and in case of an equality of votes the chairman shall have a second or casting vote.

Chairman.

44. The President of the Society shall be the chairman at each of the meetings of the directors at which he shall be present but if he shall be absent at the time appointed for holding the same the directors present shall choose some one of their number to be chairman of such meeting.

Power of meeting.

45. A meeting of the directors for the time being at which a quorum is present shall be competent to exercise all or any of the authorities powers and discretions by or under regulations of the Society for the time being vested in or exerciseable by the directors generally.

Power to appoint committees and to delegate.

46. The directors may delegate any of their powers to committees consisting of such member or members of their body as they think fit Any committee so formed shall in the exercise of the powers so delegated conform to any regulations that may from time to time be imposed on it by the directors.

47. The meetings and proceedings of any such committee consisting of two or more members shall be governed by the provisions herein contained for regulating the meetings and proceedings of the directors so far as the same are applicable thereto and are not superseded by any regulations made by the directors under the last preceding article.

A.D. 1905.

Proceedings of committees.

48. All acts done at any meeting of the directors or of a committee of directors or by any person acting as a director shall notwithstanding that it shall afterwards be discovered that there was some defect in the appointment of such directors or persons acting as aforesaid or that they or any of them were disqualified be as valid as if every such person had been duly appointed and was qualified to be a director.

When acts of directors or committee valid notwithstanding defective appointment &c.

MINUTES.

49. The directors shall cause minutes to be duly entered in books provided for the purpose—

Minutes to be made.

Of all appointments of officers :

Of the names of the directors present at each meeting of the directors and of any committee of directors :

Of all orders made by the directors and committee of directors :

Of all resolutions and proceedings of general meetings and of meetings of the directors and committees :

And any such minutes of any meeting of the directors or of any committee or of the Society if purporting to be signed by the chairman of such meeting or by the chairman of the next succeeding meeting shall be receivable as prima facie evidence of the matters stated in such minutes.

POWERS OF DIRECTORS.

50. The management of the business of the Society shall be vested in the directors and the directors in addition to the powers and authorities by these Articles expressly conferred upon them may exercise all such powers and do all such acts and things as may be exercised or done by the Society and are not hereby or by statute directed or required to be exercised or done by the Society in general meeting but subject nevertheless to the provisions of the statutes and of these articles and to any regulations from time to time made by the Society in general meeting provided that no such regulation shall invalidate any prior act of the directors which would have been valid if such regulation had not been made.

General powers of the Society vested in directors.

51. Without prejudice to the general powers conferred by the last preceding article and so as not in any way to limit or restrict those powers and without prejudice to the other powers conferred by these articles it is hereby expressly declared that the directors shall have the following powers that is to say power—

Specific powers given to directors.

(1) To purchase or otherwise acquire for the Society any property rights or privileges which the Society is authorised to acquire at or for such price or consideration and generally on such terms and conditions as they think fit :

To acquire property.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905.

To appoint
officers &c.

(2) To appoint and at their discretion remove or suspend such managers medical officers actuaries secretaries solicitors clerks agents and servants for permanent temporary or special services as they may from time to time think fit and to determine their duties and powers and fix their salaries or emoluments and to require security in such instances and to such amounts as they think fit and to grant to any such officer or servant out of the funds of the Society such pension or superannuation allowance or gratuity as they may in each case think proper :

To give secu-
rity by way of
indemnity.

(3) To execute in the name and on behalf of the Society in favour of any director or other person who may incur or be about to incur any personal liability for the benefit of the Society such mortgages of the Society's property (present and future) as they think fit and any such mortgage may contain a power of sale and such other powers covenants and provisions as shall be agreed on.

TRUSTEES.

Directors may
appoint and
remove trus-
tees.

52. The directors may if in their discretion they think fit from time to time and at any time appoint any person or persons to accept and hold any investments securities or property belonging to the Society or in which it is interested in trust for the Society or for any other purposes and may execute and do all such deeds and things as may be requisite in relation to any such trusts and may provide for the remuneration of such trustees Any of the directors may act as trustees Any trustee may be removed by the directors.

Persons abroad
may be ap-
pointed.

53. When the directors think it expedient any foreigner or other person out of the jurisdiction may be appointed a trustee for any such purpose.

Delegation by
trustees.

54. When the directors think it expedient any trustee for the Society may be authorised to delegate all or any of the trustees' powers or discretions vested in him.

Trustees to act
under direc-
tions.

55. The several persons who for the time being hold property in trust for the Society (including those acting when these articles come into operation) shall act in all respects under and in accordance with the directions of the Society and of the directors.

INVESTMENTS.

Investments.

56. The directors may subject to any restrictions imposed by the Society in general meeting invest any of the funds of the Society—

(1) In the purchase of any of the public stocks or funds or Government securities of the United Kingdom or India or any colony or dependency of the United Kingdom or any foreign country or state :

(2) In the purchase of lands buildings or hereditaments or any interest therein or rights connected therewith whether in the United Kingdom or elsewhere :

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

- (3) In the purchase of ground rents head rents chief rents feu duties ground annuals rentcharges or any other kind of rents or income arising out of or charged on lands whether in the United Kingdom or elsewhere : A.D. 1905.
- (4) In the purchase of stocks funds shares debentures debenture stock mortgages or securities of any corporation body or company municipal county local commercial or of any other description whatsoever in the United Kingdom or India or any colony or dependency of the United Kingdom or any foreign country or state :
- (5) In the purchase of mortgages charges annuities liens incumbrances affecting any property on which the Society has power to lend :
- (6) In the purchase of policies annuities or contracts of any kind issued granted or made by the Society or in respect of which it is under any liability or issued granted or made by any other assurance office :
- (7) In the purchase of life reversionary or other interests whether absolute contingent or expectant in property of any kind whether determinable or not :
- (8) In the purchase of any other property or security real or personal movable or immovable and wheresoever situated which the directors may think fit to acquire :
- (9) Or on the security of any of the foregoing assets :
- (10) Or on the personal liability of the borrower fortified by the guarantee covenant or obligation of any person or company whether as sureties or otherwise :
- (11) Or on deposit with any bank or joint stock company.

57. The directors may join with any other company or persons in making any such purchases or investments. Joint investments.

58. The directors shall have power from time to time at their discretion to vary and transpose any of the investments herein-before mentioned. Power to vary.

THE SEAL.

59. The directors shall provide for the safe custody of the seal and the seal shall never be used except by the authority of the directors or a committee of the directors and in the presence of two directors at least who shall sign every instrument to which the seal is affixed and every such instrument shall be countersigned by the Secretary. The seal.

BYELAWS.

60. The directors may from time to time make alter and repeal byelaws for the management of the business of the Society in all its branches and for regulating the duties and conduct of its officers and any Power for directors to make &c. byelaws.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905. other matters that in the opinion of the directors require regulation
— Provided that—

(A) A byelaw inconsistent with any Act of Parliament or the law of the place where it is to operate or with any provision herein contained is ipso facto void :

(B) Any byelaw may at any time be altered or repealed by an extraordinary resolution of the Society in general meeting.

LOCAL MANAGEMENT.

Local manage-
ment.

61. The directors may from time to time provide for the management and transaction of the affairs of the Society in any specified locality whether at home or abroad in such manner as they think fit and the provisions contained in the three next following articles shall be without prejudice to the general power conferred by this article.

Local boards.

62. The directors from time to time and at any time may establish any local board or agency for managing any of the affairs of the Society in any such specified locality and may appoint any persons to be members of such local board or managers or agents and may fix their remuneration And the directors from time to time and at any time may delegate to any person so appointed any of the powers authorities and discretions for the time being vested in the directors and may authorise the members for the time being of any such local board or any of them to fill up any vacancies therein and to act notwithstanding vacancies and any such appointment or delegation may be made on such terms and subject to such conditions as the directors may think fit and the directors may at any time remove any person so appointed and may annul or vary any such delegation.

Powers of
attorney.

63. The directors may at any time and from time to time by power of attorney under the seal appoint any person or persons to be the attorney or attorneys of the Society for such purposes and with such powers authorities and discretions (not exceeding those vested in or exerciseable by the directors under these articles) and for such period and subject to such conditions as the directors may from time to time think fit and any such appointment may (if the directors think fit) be made in favour of the members or any of the members of any local board established as aforesaid or in favour of any company or of the members directors nominees or managers of any company or firm or otherwise in favour of any fluctuating body of persons whether nominated directly or indirectly by the directors and any such power of attorney may contain such powers for the protection or convenience of persons dealing with such attorneys as the directors may think fit.

Sub-delega-
tion.

64. Any such delegates or attorneys as aforesaid may be authorised by the directors to sub-delegate all or any of the powers authorities and discretions for the time being vested in them.

Companies'
Seals Act 1864
and Companies

65. The Society may exercise the powers conferred by the Companies' Seals Act 1864 and such powers shall accordingly be vested in

[5 EDW. 7.] *Norwich Union Life Insurance Society* [Ch. xxxvi.]
Act, 1905.

the directors And the Society may cause to be kept in any colony in which it transacts business a branch register of members resident in such colony and the word "colony" in this clause shall have the meaning assigned thereto by the Companies (Colonial Registers) Act 1883 and the directors may from time to time make such provisions as they may think fit respecting the keeping of any such branch register.

A.D. 1905.
—
(Colonial
Registers) Act
1883.

66. The directors may comply with the requirements of any local law which in their opinion it shall in the interests of the Society be necessary or expedient to comply with.

Local laws

QUINQUENNIAL VALUATION AND DISTRIBUTION OF PROFITS.

67.—(1) In the year 1906 and in every subsequent fifth year the directors shall cause an investigation to be made into the financial condition of the Society on such basis of valuation and by such methods as they may think fit and after making such provision as they shall think desirable for any of the special or reserve funds referred to in Article 71 shall determine the amount of profit (if any) available for distribution.

Quinquennial
investigation.

(2) Of the amount of such profit such a sum as the directors may determine shall be distributed among the holders of participating policies so however that holders of old series' participating policies shall receive no less an amount than they would have been entitled to receive under the Norwich Union Life Insurance Society Act 1891.

Distribution
of profit.

(3) The balance of such profit (if any) remaining undistributed shall be carried forward.

68. The directors may if they see fit in any year intervening between any two successive years of quinquennial valuation cause a similar investigation to be made into the financial condition of the Society's business or any particular branch thereof and may determine the amount of profit (if any) to be divided in respect of such business or such particular branch.

Interim inves-
tigation &c.

69. All policies which have been or which shall hereafter be granted on terms of participation (in whatever form) in the profits of the Society are termed participating policies but in order to entitle the holder of such a policy to share in any quinquennial distribution of profits the life or lives assured by the policy must have survived the 30th day of June immediately preceding such distribution Provided always that the directors may during the interval between any two quinquennial valuations declare and distribute an intermediate bonus or bonuses in respect of any policy or policies the life or lives assured whereby shall have predeceased such 30th day of June In all other respects the share of profits divisible among the participating policy-holders shall be distributed among them at such times on such principles and by such methods as the directors may from time to time determine.

Definition of
participating
policies and
provision as to
intermediate
bonuses.

70. The directors before paying any share of profits may if the circumstances of the case appear to the directors to make it expedient require evidence by statutory declaration or otherwise as the directors think fit of the title of any person claiming a right to receive the same.

Evidence of
title to share
of profits.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 Edw. 7.]
Act, 1905.

A.D. 1905. 71. The directors may from time to time if they think it expedient in the interests of the Society form special funds or reserve funds for any special purposes to be designated by such names and composed of such sums respectively as they may determine and may carry to any such fund sufficient sums for its purpose out of the general assets of the Society and such special or reserve funds shall be dealt with in such manner as the directors may from time to time determine.

Power to establish special or reserve funds.

ACCOUNTS.

Accounts to be kept. 72. The directors shall cause true accounts to be kept of the sums of money received and expended by the Society and of the matters to which the receipts and expenditure relate and of the property assets credits and liabilities of the Society. The books of accounts shall be kept at the office or at such other place or places as the directors think fit.

Inspection by members. 73. The directors shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations the accounts and books of the Society or any of them shall be open to the inspection of the members and no member shall have any right of inspecting any account or book or document of the Society except as conferred by statute or authorised by the directors or by a resolution of the Society in general meeting.

Annual revenue account and balance sheet. 74. At the annual general meeting in every year the directors shall lay before the Society a revenue account and a balance sheet containing a summary of the property and liabilities of the Society made up to the end of the last preceding 31st day of December.

Annual report of directors. 75. Every such account and balance sheet shall be accompanied by a report of the directors as to the state and condition of the Society and the account report and balance sheet shall be signed by two directors and countersigned by the general manager or secretary.

Members to be entitled to copies on application. 76. The members shall be entitled to copies from the Society of every such revenue account and balance sheet on application to the secretary.

AUDIT.

Accounts to be audited annually. 77. Once at least in every year the accounts of the Society shall be examined and the correctness of the revenue account and balance sheet ascertained by one or more auditor or auditors.

Auditors. 78. The Society at each annual general meeting shall appoint an auditor or auditors to hold office until the next annual general meeting and the following provisions shall have effect (that is to say):—

(1) If an appointment of auditors is not made at any particular annual general meeting the Board of Trade may on the application of any member of the Society appoint an auditor for the current year and fix the remuneration to be paid to him by the Society for his services:

(2) A director or officer of the Society shall not be capable of being appointed auditor:

- (3) The directors may fill any casual vacancy in the office of auditor but while any such vacancy continues the surviving or continuing auditor or auditors (if any) may act: A.D. 1905.
- (4) The remuneration of the auditors shall be fixed by the Society in general meeting except that the remuneration of any auditors appointed to fill any casual vacancy may be fixed by the directors:
- (5) Every auditor shall have a right of access at all times to the books and accounts and vouchers of the Society and shall be entitled to require from the directors and officers of the Society such information and explanation as may be necessary for the performance of the duties of the auditors and the auditors shall sign a certificate at the foot of the balance sheet stating whether or not all their requirements as auditors have been complied with and shall make a report to the members on the accounts examined by them and in every balance sheet laid before the Society in general meeting during their tenure of office and in every such report shall state whether in their opinion the balance sheet referred to in the report is properly drawn up so as to exhibit a true and correct view of the state of the Society's affairs as shown by the books of the Society and such report shall be read before the Society in general meeting.

79. Every account of the directors when audited and approved by a general meeting shall be conclusive except as regards any error discovered therein within three months next after the approval thereof. Whenever any such error is discovered within that period the account shall forthwith be corrected and thenceforth shall be conclusive. When accounts to be deemed finally settled.

NOTICES.

80. A notice may be served by the Society upon any member either personally or by sending it through the post in a prepaid letter envelope or wrapper addressed to such member at his registered place of address. How notices to be served on members.

81. Each member whose registered place of address is not in the United Kingdom may from time to time notify in writing to the Society an address in the United Kingdom which shall be deemed his registered place of address within the meaning of the last preceding article. Members resident abroad.

82. As regards those members who have no registered place of address a notice posted up in the office shall be deemed to be well served on them at the expiration of 24 hours after it is so posted up. Notice where no address.

83. Any notice required to be given by the Society to the members or any of them and not expressly provided for by these articles shall be sufficiently given if given by advertisement. Any notice required to be or which may be given by advertisement shall be advertised once in one London daily newspaper and one newspaper published in the city of Norwich. When notice may be given by advertisement.

84. All notices shall with respect to several persons who as joint grantees of a policy are members shall be given to whichever of such Notice to joint holders.

[Ch. xxxvi.] *Norwich Union Life Insurance Society* [5 EDW. 7.]
Act, 1905.

A.D. 1905. persons is named first in the register in respect of such policy and notice so given shall be sufficient notice to all the holders of such policy.

When notice
by post
deemed to be
served.

85. Any notice sent by post shall be deemed to have been served on the day following that on which the letter envelope or wrapper containing the same is posted and in proving such service it shall be sufficient to prove that the letter envelope or wrapper containing the notice was properly addressed and put into the post office.

How time to
be counted.

86. Where a given number of days notice or notice extending over any other period is required to be given the day of service shall unless it is otherwise provided be counted in such number of days or other period.

Signatures for
Society.

87. The signature to any notice to be given by the Society may be written or printed.

INDEMNITY AND RESPONSIBILITY.

Indemnity.

88. Every director manager secretary and other officer or servant of the Society shall be indemnified by the Society against and it shall be the duty of the directors out of the funds of the Society to pay all costs losses and expenses which any such officer or servant may incur or become liable to by reason of any contract entered into or act or deed done by him as such officer or servant or in any way in the discharge of his duties including travelling expenses.

Individual
responsibility
of directors.

89. No director or other officer of the Society shall be liable for the acts receipts neglects or defaults of any other director or officer or for joining in any receipt or other act for conformity or for any loss or expense happening to the Society through the insufficiency or deficiency of title to any property acquired by order of the directors for or on behalf of the Society or for the insufficiency or deficiency of any security in or upon which any of the moneys of the Society shall be invested or for any loss or damage arising from the bankruptcy insolvency or tortious act of any person with whom any moneys securities or effects shall be deposited or for any loss or damage occasioned by any error of judgment or oversight on his part or for any other loss damage or misfortune whatever which shall happen in the execution of the duties of his office or in relation thereto unless the same happen through his own dishonesty.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.4; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.